IN THE NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH

IA 98/2018 in
CP (CAA) No. 05/BB/2018
Under Rule 11 r/w 14 of NCLT Rules, 2016
u/s 230 to 232 of Companies Act, 2013

In the matter of

Machani Ramesh Metamorphosis Private Limited
139/2, Hosur Road
Koramangala
Bangalore 560 095

And

STUMPP SCHUELE & SOMAPPA PRIVATE LIMITED

And

MACHANI RAMESH HERITAGE PRIVATE LIMITED

-- **Applicant/Petitioner**

For the Petitioner (s) : Shri Perikal K. Arjun, Advocate

Order delivered on 27th July, 2018

Coram: 1. Hon'ble Shri Rajeshwara Rao Vittanala, Member Judicial
2. Hon'ble Shri.Ashok Kumar Mishra, Member Technical

Per: Hon'ble Shri Rajeshwara Rao Vittanala, Member Judicial

O R D E R

1. IA 98/BB/2018 in CP (CAA) No. 5/BB/2018 is filed by Shri Satish Ramesh Machani, under Rule11 and 14 of NCLT Rules, 2016 and u/s 230 to 232 of Companies Act, 2013 by inter-alia seeking modification of appointed date between Machani Ramesh Metamorphosis Private Limited and Stump Schuele & Somappa Private Limited and Machani Ramesh Heritage Private Limited, from 01.04..2017 to 01.04.2018.
2. Heard Shri Perikal K. Arjun, Learned Counsel for Applicant/Petitioner. The Learned Counsel submit that the Board

of Directors of Petitioner Company, in its Board of Directors Meeting held on 18.08.2016, has approved the amendment to the appointed date for the scheme of arrangement from 01.04.2017 to 01.04.2018, between the Companies. However, due to unforeseen circumstances, the timeline for completion of the merger has been extended to the financial year 2016-17. Therefore, it has necessitated to change the appointed dated from 01.04.2017 to 01.04.2018.

3. Therefore, the Board of Directors of the Petitioner Company Stumpp Schuele & Somappa Private Limited, has passed a resolution by accepting the amendment of scheme of arrangement between Stump Schuele & Somappa Private Limited and Machani Ramesh Heritage Private Limited and Machani Ramesh Metamorphosis Private Limited, vide Board Resolution dated 18.08.2016, by altering clause 28 to appointed date as 01.04.2018, under the scheme of arrangement.

4. IA 98/BB/2018 is allowed permitting the Applicant/Petitioner to amend the Company Petition with regard to the appointed date, as prayed for in the main Company petition.

Post CP (CAA) No. 05/BB/2018 for final hearing on 20.08.2018.

(ASHOK KUMAR MISHRA)
MEMBER, TECHNICAL

(RAJESHWARA RAO VITTANALA)
MEMBER, JUDICIAL

rb